

CHAPTER 8.

An Act to further amend the Law as to the Letting and Rating of small Dwelling-Houses in Scotland.

[20th May 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The assessments imposed by any assessing authority in Scotland for the year to Whitsunday, nineteen hundred and twenty, and for any subsequent year, which are imposed on any occupier of a small dwelling-house, and for which the owner is by law responsible, shall, subject to the provisions of this Act and to the extent (if any) to which the total of such assessments is in excess of the total of the assessments for the immediately preceding year, be deemed to have been and be a lawful addition to the rent for the whole of the year for which the increased assessments are imposed, and shall be payable by the occupier or successive occupiers of the small dwelling-house during that year, but to such extent only and in such shares as shall be proportionate to the period or periods of their respective occupancies; and, where in any year the total of the assessments imposed on any occupier of a small dwelling-house for which the owner is by law responsible shall be less than the total of the assessments for the preceding year, the owner shall (without prejudice to his right to payment of the standard rent in full) allow to the occupier or successive occupiers of the small dwelling-house a corresponding deduction from the rent thereof to such extent or in such shares as shall be proportionate to the period or periods of their respective occupancies :

Provisions as to recovery by owners of small dwelling-houses of occupiers' assessments.

Provided that, where an owner has paid to an assessing authority any assessment in excess of the assessment for the preceding year which, owing to any change in the occupancy of a small dwelling-house, he is unable to recover as an addition to rent under this Act, the assessing authority, if satisfied that all reasonable steps have been taken to recover the same, shall repay to him the amount so paid and irrecoverable, upon a claim therefor being lodged by the owner with the assessing authority on or before a date to be fixed by the assessing authority giving particulars of any change of occupancy and the amount claimed as irrecoverable.

(2) So much of the provisions of proviso (vi) to subsection (1) of section one of the Increase of Rent and Mortgage Interest (War Restrictions) Act, 1915 (as amended by subsection (3) of section five of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1919), as provides that no increase

of rent by the said Act of 1915 permitted shall be due or recoverable in respect of any period prior to the expiry of four clear weeks after the service of the notice in the said proviso mentioned, shall not apply to any addition to rent payable by an occupier to an owner under this Act.

(3) So much of any addition to the rent of a small dwelling-house payable under this Act as relates to any portion of the year prior to the service of the notice aforesaid shall be recoverable from, and payable by, the occupier for the time being as if the said addition were arrears of rent.

Statement as
to amount of
occupier's
assessments.

2. From and after Martinmas nineteen hundred and twenty, every document containing a demand for rent, or a receipt for rent, payable in respect of a small dwelling-house in Scotland shall state the total amount of any assessments for the time being imposed on the occupier of the small dwelling-house for which the owner is by law responsible proportionate to the period for which the rent is demanded or has been paid :

Provided that, where such a statement as is required by this section has been furnished in connexion with a demand for rent or receipt for rent in respect of a particular period, it shall not be necessary to furnish the statement upon any subsequent demand for rent or receipt for rent in respect of that period.

Penalties.

3. Any owner who knowingly demands or receives from an occupier of a small dwelling-house in respect of rent or addition to rent any sum in excess of the sum which he is by law entitled so to demand or receive, and any owner who knowingly makes or causes to be made any false statement in or in connexion with any claim lodged with an assessing authority under subsection (1) of section one of this Act, shall be liable on summary conviction to a penalty not exceeding fifty pounds, and any owner who makes a demand for rent or gives a receipt for rent which does not comply with the provisions of the immediately preceding section of this Act shall, in respect of each offence, be liable on summary conviction to a penalty not exceeding forty shillings.

Interpreta-
tion.

4. In this Act, unless the context otherwise requires,—

The expressions "assessment," "assessing authority," "owner," "occupier," and "small dwelling-house" have the same meanings respectively as in the House-Letting and Rating (Scotland) Act, 1911, and the expressions "demand for rent" and "receipt for rent" shall include rent-book, rent-card, and any document used for the notification or collection of rent due or for the acknowledgment of the receipt of the same;

The expression "standard rent" has the same meaning as in the Increase of Rent and Mortgage Interest (War Restrictions) Act, 1915.

1 & 2 Geo. 5.
c. 53.

5.—(1) This Act may be cited as the House-Letting and Rating (Scotland) Act, 1920, and the House-Letting and Rating (Scotland) Act, 1911, and this Act may be cited together as the House-Letting and Rating (Scotland) Acts, 1911 and 1920. Citation and extent.

(2) This Act shall extend to Scotland only.

CHAPTER 9.

An Act to provide for the variation of the provisions regulating the raising of Capital by Companies carrying on certain statutory undertakings. [20th May 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where a company are authorised by special Act to raise capital by the issue of stock or the borrowing of money for the purpose of carrying on any undertaking to which this Act applies, or where the powers of a company to raise capital or borrow money for the purpose of carrying on such an undertaking are limited by the special Act, the company may, if they think fit, notwithstanding anything in the special Act, with the consent of the appropriate Government department, which consent may be given subject to such terms and conditions as appear to the department to be expedient— Powers under provisions of special Acts and Orders as to capital issues.

- (a) offer for subscription by the public any such stock and at a fixed price lower than the nominal amount of the stock, and all allotments in respect of such stock shall be made as nearly as possible pro rata :

Provided that, if in any case, where the amount of money to be raised does not exceed twenty thousand pounds, it is proved to the satisfaction of the appropriate department that the observance of any of the limitations so imposed on the offering for subscription or allotment of stock would prejudice the success of the issue or the realisation of the best price obtainable, the department may dispense with such limitation ;

- (b) where the special Act authorises the creation and issue of ordinary stock, create and issue redeemable or irredeemable preference stock in lieu thereof ;
- (c) where the special Act authorises the creation and issue of irredeemable preference or debenture stock, create and issue redeemable preference or debenture stock ;